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viously described how various features of the death penalty as currently administered show that it may well violate the Constitution. See *Glossip v. Gross*, 576 U.S. 863, 908–946 (2015) (dissenting opinion). The Federal Government’s decision to resume executions renders the question of the death penalty’s constitutionality yet more pressing.

Given the finality and seriousness of a death sentence, it is particularly important to ensure that the individuals sentenced to death are guilty, that they received full and fair procedures, and that they do not spend excessively long periods of time on death row. Courts must also ensure that executions take place through means that are not inhumane.

This case illustrates at least some of the problems the death penalty raises in light of the Constitution’s prohibition against “cruel and unusual punishmen[t].” Amdt. 8. Mr. Lee was sentenced to death in 1999 and has now spent over 20 years on death row. Such lengthy delays inflict severe psychological suffering on inmates and undermine the penological rationale for the death penalty. See *Glossip*, 576 U.S., at 923–935 (BREYER, J., dissenting). Moreover, the death penalty is often imposed arbitrarily. *Id.*, at 915–923. Mr. Lee’s codefendant in his capital case was sentenced to life imprisonment despite committing the same crime. Amended Judgment in *Lee v. United States*, No. 20–2351 (CA 8), pp. 3–4 (July 12, 2020) (Kelly, J., dissenting from denial of stay of execution); *id.*, at 5–7 (explaining that Mr. Lee’s execution “raises real concerns about the arbitrary application of the death penalty”).

Moreover, there are significant questions regarding the constitutionality of the method the Federal Government will use to execute him. The Government announced on July 25, 2019, that it planned to resume federal executions, after nearly two decades, pursuant to a new single-drug protocol using pentobarbital. See Press Release, Dept. of Justice, Federal Government to Resume Capital Punishment After Nearly Two Decade Lapse, <https://www.justice.gov/opa/pr/federal->

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government-resume-capital-punishment-after-nearly-two-decade-lapse. In an opinion preliminarily enjoining the execution of Mr. Lee and three other plaintiffs, the U. S. District Court for the District of Columbia explained that the “scientific evidence before [it] overwhelmingly indicates that the [Government’s] 2019 Protocol is very likely to cause Plaintiffs extreme pain and needless suffering during their executions.” Memorandum Opinion in No. 19–mc–145, *In the Matter of the Federal Bureau of Prisons’ Execution Protocol Cases*, Doc. 135, pp. 9, 11 (July 13, 2020). That court also explained that Mr. Lee and the other plaintiffs had “identified two available and readily implementable alternative methods of execution that would significantly reduce the risk of serious pain.” *Id.*, at 18.

In short, the resumption of federal executions promises to provide examples that illustrate the difficulties of administering the death penalty consistent with the Constitution. As I have previously written, the solution may be for this Court to directly examine the question whether the death penalty violates the Constitution. See *Glossip v. Gross*, 576 U. S., at 946 (dissenting opinion).

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG and JUSTICE KAGAN join, dissenting.

The Court hastily disposes of respondents’ Eighth Amendment challenge to the use of pentobarbital in the Federal Government’s single-drug execution protocol. In doing so, the Court accepts the Government’s artificial claim of urgency to truncate ordinary procedures of judicial review. This sets a dangerous precedent. The Government is poised to carry out the first federal executions in nearly two decades. Yet because of the Court’s rush to dispose of this litigation in an emergency posture, there will be no meaningful judicial review of the grave, fact-heavy challenges respondents bring to the way in which the Government plans to execute them.

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I

Respondents' original complaint in this case dates back to 2005. Since then, the Government has modified its execution protocol in significant part, most recently in July 2019 when it replaced the three-drug protocol with a single drug: pentobarbital sodium. App. to Application for Stay or Vacatur 5a. In light of this change, respondents alleged that the Government's planned use of pentobarbital could result in needless pain and suffering in violation of the Eighth Amendment. Among other things, respondents proffered expert evidence that the majority of those injected with pentobarbital suffer flash pulmonary edema, which can lead to a sensation akin to drowning and "'extreme pain, terror, and panic.'" *Id.*, at 10a. Respondents first focused their litigation efforts on the claim that the 2019 protocol exceeds statutory authority, although they also alleged that the protocol violated the Administrative Procedure Act, the Controlled Substances Act, the Food, Drug, and Cosmetic Act, and the Constitution. The Court of Appeals issued a final ruling on the statutory-authority claim in April 2020, expressly declining to rule on respondents' remaining claims on the ground that they were "'neither addressed by the district court nor fully briefed.'" *Id.*, at 7a. This Court denied review two weeks ago.

On June 15, 2020, the Government announced respondents' new execution dates. Four days later, respondents filed a joint motion for a preliminary injunction on their remaining claims and filed a motion for expedited discovery the following day. The parties submitted hundreds of pages of briefing and exhibits over two weeks. The District Court decided this record-heavy motion within two weeks, and during a time when two sister courts independently stayed two of the executions. The District Court evaluated respondents' Eighth Amendment challenge and stayed their executions to permit full consideration by the District Court and the Court of Appeals of their claims. The Court of Appeals

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denied the Government’s motion for a stay, noting that respondents’ claims involve “novel and difficult constitutional questions” that require the benefit of “further factual and legal development.” The court *sua sponte* set an expedited briefing schedule to resolve the appeal. Mere hours later, however, this Court now grants the Government’s last-minute application to vacate the stay, allowing death-sentenced inmates to be executed before any court can properly consider whether their executions are unconstitutionally cruel and unusual.

II

That outcome is hard to square with this Court’s denial of a similar request by the Government seven months ago in this very litigation. See *Barr v. Roane*, 589 U. S. 1097 (2019). That order prohibited the Government to proceed with executions before the Court of Appeals could address respondents’ different, but equally serious statutory challenge to the federal execution protocol. And in a separate statement, three Members of this Court contemplated that respondents here would not be executed before “the merits of their Administrative Procedure Act [APA] claim [are] adjudicated.” *Id.*, at 1098 (statement of ALITO, J., respecting denial of stay or vacatur). They maintained that “in light of what is at stake, it would be preferable for the District Court’s decision to be reviewed on the merits by the Court of Appeals for the District of Columbia Circuit before the executions are carried out.” *Ibid.*

These statements now ring hollow. By overriding the lower court’s stay, this Court forecloses any review of respondents’ APA claims and bypasses the appellate court’s review of a novel challenge to the federal execution protocol. It does so despite the fact that, whatever may have been true on the records presented in previous cases, see, *e. g.*, *Zagorski v. Parker*, 586 U. S. 938 (2018), the parties here introduced conflicting expert evidence about the likelihood that pentobarbital causes pain and suffering before ren-

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dering a person insensate, which no factfinder has adjudicated.

III

Once again, the Court has chosen to grant an emergency application from the Government for extraordinary relief. *Wolf v. Cook County*, 589 U.S. 1190, 1194 (2020) (SOTOMAYOR, J., dissenting from grant of stay). The dangers of that practice are particularly severe here, where the grant of the Government's emergency application inflicts the most irreparable of harms without the deliberation such an action warrants. See *id.*, at 1195 (entertaining last-minute stay applications from the Government "upend[s] the normal appellate process" and "force[s] the Court to consider important statutory and constitutional questions that have not been ventilated fully in the lower courts, on abbreviated timetables and without oral argument").

* * *

Today's decision illustrates just how grave the consequences of such accelerated decisionmaking can be. The Court forever deprives respondents of their ability to press a constitutional challenge to their lethal injections, and prevents lower courts from reviewing that challenge. All of that is at sharp odds with this Court's own ruling mere months earlier. In its hurry to resolve the Government's emergency motions, I fear the Court has overlooked not only its prior ruling, but also its role in safeguarding robust federal judicial review. I respectfully dissent.

REPORTER'S NOTE

Orders commencing with July 2, 2020, begin with page 1024. The preceding orders in 591 U. S., from June 18, 2020, through June 29, 2020, were reported in Part 1, at 1001–1023. These page numbers are the same as they will be in the bound volume, thus making the *permanent* citations available upon publication of the preliminary prints of the United States Reports.

Page Proof Pending Publication

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Certiorari Granted—Vacated and Remanded

No. 18–1019. *BOX, COMMISSIONER, INDIANA DEPARTMENT OF HEALTH, ET AL. v. PLANNED PARENTHOOD OF INDIANA & KENTUCKY, INC.* C. A. 7th Cir. Reported below: 896 F. 3d 809; and

No. 19–816. *BOX ET AL. v. PLANNED PARENTHOOD OF INDIANA & KENTUCKY, INC.* C. A. 7th Cir. Reported below: 937 F. 3d 973. Certiorari granted, judgments vacated, and cases remanded for further consideration in light of *June Medical Services L. L. C. v. Russo*, 591 U. S. 299 (2020).

No. 18–1151. *ST. AUGUSTINE SCHOOL ET AL. v. TAYLOR, SUPERINTENDENT OF PUBLIC INSTRUCTION, ET AL.* C. A. 7th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Espinoza v. Montana Dept. of Revenue*, 591 U. S. 464 (2020). Reported below: 906 F. 3d 591.

No. 18–1309. *BOOKING.COM B. V. v. UNITED STATES PATENT AND TRADEMARK OFFICE ET AL.* C. A. 4th Cir. Motion of New York Intellectual Property Law Association for leave to file brief as *amicus curiae* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Peter v. NantKwest, Inc.*, 589 U. S. 23 (2019). Reported below: 915 F. 3d 171.

No. 19–978. *TEAM RESOURCES INC. ET AL. v. SECURITIES AND EXCHANGE COMMISSION.* C. A. 5th Cir. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Liu v. SEC*, 591 U. S. 71 (2020). Reported below: 942 F. 3d 272.

No. 19–7714. *DE MAISON v. SECURITIES AND EXCHANGE COMMISSION.* C. A. 2d Cir. Motion of petitioner for leave to proceed *in forma pauperis* granted. Certiorari granted, judgment vacated, and case remanded for further consideration in light of *Liu v. SEC*, 591 U. S. 71 (2020). Reported below: 785 Fed. Appx. 3.

Miscellaneous Orders

No. 19A1063. *MERRILL, ALABAMA SECRETARY OF STATE, ET AL. v. PEOPLE FIRST OF ALABAMA ET AL.* D. C. N. D. Ala. Application for stay, presented to JUSTICE THOMAS, and by him referred to the Court, granted, and the District Court's June 15,

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2020, order granting preliminary injunction is stayed pending disposition of the appeal in the in the United States Court of Appeals for the Eleventh Circuit and disposition of the petition for writ of certiorari, if such writ is timely sought. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court. JUSTICE GINSBURG, JUSTICE BREYER, JUSTICE SOTOMAYOR, and JUSTICE KAGAN would deny the application.

No. 19–1389. TEXAS DEMOCRATIC PARTY ET AL. *v.* ABBOTT, GOVERNOR OF TEXAS, ET AL. C. A. 5th Cir. Motion to expedite consideration of petition for writ of certiorari before judgment denied.

Certiorari Granted

No. 19–351. FEDERAL REPUBLIC OF GERMANY ET AL. *v.* PHILIPP ET AL. C. A. D. C. Cir. Certiorari granted. Reported below: 894 F. 3d 406.

No. 19–1328. DEPARTMENT OF JUSTICE *v.* HOUSE COMMITTEE ON THE JUDICIARY. C. A. D. C. Cir. Certiorari granted. Reported below: 951 F. 3d 589.

No. 18–1447. REPUBLIC OF HUNGARY ET AL. *v.* SIMON ET AL. C. A. D. C. Cir. Certiorari granted limited to Question 1 presented by the petition. Reported below: 911 F. 3d 1172.

No. 19–416. NESTLE USA, INC. *v.* DOE ET AL.; and

No. 19–453. CARGILL, INC. *v.* DOE ET AL. C. A. 9th Cir. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: 929 F. 3d 623.

Certiorari Denied

No. 19–294. HAMAMA ET AL. *v.* ADDUCCI ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 912 F. 3d 869.

No. 19–520. PHILIPP ET AL. *v.* FEDERAL REPUBLIC OF GERMANY ET AL. C. A. D. C. Cir. Certiorari denied. Reported below: 894 F. 3d 406.

No. 19–677. YOST ET AL. *v.* PLANNED PARENTHOOD SOUTHWEST OHIO REGION ET AL. C. A. 6th Cir. Certiorari denied. Reported below: 931 F. 3d 530.

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No. 19–743. HILL, ATTORNEY GENERAL OF INDIANA, ET AL. *v.* WHOLE WOMAN’S HEALTH ALLIANCE ET AL. C. A. 7th Cir. Certiorari denied. Reported below: 937 F. 3d 864.

No. 19–983. REILLY ET AL. *v.* CITY OF HARRISBURG, PENNSYLVANIA, ET AL. C. A. 3d Cir. Certiorari denied. Reported below: 790 Fed. Appx. 468.

No. 19–1176. YOVINO, FRESNO COUNTY SUPERINTENDENT OF SCHOOLS *v.* RIZO. C. A. 9th Cir. Certiorari denied. Reported below: 950 F. 3d 1217.

No. 19–7369. KEEN *v.* TENNESSEE. Ct. Crim. App. Tenn. Certiorari denied.

No. 19–7745. SMITH *v.* DUNN, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS. C. A. 11th Cir. Certiorari denied. Reported below: 924 F. 3d 1330.

No. 18–1516. PRICE ET AL. *v.* CITY OF CHICAGO, ILLINOIS, ET AL. C. A. 7th Cir. Certiorari denied. JUSTICE THOMAS would grant the petition for writ of certiorari. Reported below: 915 F. 3d 1107.

No. 19–1106. SHARP, INTERIM WARDEN *v.* SMITH. C. A. 10th Cir. Motion of respondent for leave to proceed *in forma pauperis* granted. Certiorari denied. Reported below: 935 F. 3d 1064.

JULY 6, 2020

Miscellaneous Order

No. 19A1053. UNITED STATES ARMY CORPS OF ENGINEERS ET AL. *v.* NORTHERN PLAINS RESOURCE COUNCIL ET AL. D. C. Mont. Application for stay, presented to JUSTICE KAGAN, and by her referred to the Court, granted in part and denied in part. The District Court’s May 11, 2020, order granting partial vacatur and an injunction is stayed, except as it applies to the Keystone XL pipeline, pending disposition of the appeal in the United States Court of Appeals for the Ninth Circuit and disposition of the petition for writ of certiorari, if such writ is timely sought. Should the petition for writ of certiorari be denied, this stay shall terminate automatically. In the event the petition for writ of certiorari is granted, the stay shall terminate upon the sending down of the judgment of this Court.

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July 8, 9, 2020

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Certiorari Denied

No. 19–8712 (19A1064). *WARDLOW v. TEXAS*. Ct. Crim. App. Tex. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied.

No. 19–8835 (19A1065). *WARDLOW v. TEXAS*. Ct. Crim. App. Tex. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied.

No. 19–8850 (19A1069). *WARDLOW v. DAVIS, DIRECTOR, TEXAS DEPARTMENT OF CRIMINAL JUSTICE, CORRECTIONAL INSTITUTIONS DIVISION*. C. A. 5th Cir. Application for stay of execution of sentence of death, presented to JUSTICE ALITO, and by him referred to the Court, denied. Certiorari denied.

JULY 9, 2020

Certiorari Granted—Vacated and Remanded

No. 18–6098. *JOHNSON v. OKLAHOMA*. Ct. Crim. App. Okla.;
No. 18–8801. *TERRY v. OKLAHOMA*. Ct. Crim. App. Okla.;
No. 19–5417. *BENTLEY v. OKLAHOMA*. Ct. Crim. App. Okla.;
and

No. 19–6428. *DAVIS v. OKLAHOMA*. Ct. Crim. App. Okla. Motions of petitioners for leave to proceed *in forma pauperis* granted. Certiorari granted, judgments vacated, and cases remanded for further consideration in light of *McGirt v. Oklahoma*, 591 U. S. 894 (2020).

No. 19–1038. *DEPARTMENT OF HEALTH AND HUMAN SERVICES ET AL. v. CALIFORNIA ET AL.*;

No. 19–1040. *MARCH FOR LIFE EDUCATION AND DEFENSE FUND v. CALIFORNIA ET AL.*; and

No. 19–1053. *LITTLE SISTERS OF THE POOR JEANNE JUGAN RESIDENCE v. CALIFORNIA ET AL.* C. A. 9th Cir. Certiorari granted, judgment vacated, and cases remanded for further consideration in light of *Little Sisters of the Poor Saints Peter and Paul Home v. Pennsylvania*, 591 U. S. 657 (2020). Reported below: 941 F. 3d 410.

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Certiorari Granted

No. 19–968. *UZUEGBUNAM ET AL. v. PRECZEWSKI ET AL.* C. A. 11th Cir. Certiorari granted. Reported below: 781 Fed. Appx. 824.

No. 19–422. *COLLINS ET AL. v. MNUCHIN, SECRETARY OF THE TREASURY, ET AL.*; and

No. 19–563. *MNUCHIN, SECRETARY OF THE TREASURY, ET AL. v. COLLINS ET AL.* C. A. 5th Cir. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: 938 F. 3d 553.

No. 19–508. *AMG CAPITAL MANAGEMENT, LLC, ET AL. v. FEDERAL TRADE COMMISSION.* C. A. 9th Cir.; and

No. 19–825. *FEDERAL TRADE COMMISSION v. CREDIT BUREAU CENTER, LLC, ET AL.* C. A. 7th Cir. Certiorari granted, cases consolidated, and a total of one hour is allotted for oral argument. Reported below: No. 19–508, 910 F. 3d 417; No. 19–825, 937 F. 3d 764.

No. 19–511. *FACEBOOK, INC. v. DUGUID ET AL.* C. A. 9th Cir. Certiorari granted limited to Question 2 presented by the petition. Reported below: 926 F. 3d 1146.

Certiorari Denied

No. 19–914. *CREDIT BUREAU CENTER, LLC, ET AL. v. FEDERAL TRADE COMMISSION.* C. A. 7th Cir. Certiorari denied. Reported below: 937 F. 3d 764.

No. 19–1201. *BRIGHT, TENNESSEE COMMISSIONER OF TRANSPORTATION v. THOMAS.* C. A. 6th Cir. Certiorari denied. Reported below: 937 F. 3d 721.

No. 19–575. *CHARTER COMMUNICATIONS, INC., ET AL. v. GALLION ET AL.* C. A. 9th Cir. Certiorari denied. *THE CHIEF JUSTICE* took no part in the consideration or decision of this petition. Reported below: 772 Fed. Appx. 604.

JULY 10, 2020

Dismissal Under Rule 46

No. 18–1401. *PETERSON v. LINEAR CONTROLS, INC.* C. A. 5th Cir. Certiorari dismissed under this Court's Rule 46. Reported below: 757 Fed. Appx. 370.

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JULY 14, 2020

Miscellaneous Order

No. 20A6. PETERSON ET AL. *v.* BARR, ATTORNEY GENERAL, ET AL. C. A. 7th Cir. Application for stay, presented to JUSTICE KAVANAUGH, and by him referred to the Court, denied.

Certiorari Denied

No. 20–5032 (20A7). LEE *v.* WATSON, WARDEN, ET AL. Application for stay of execution of sentence of death, presented to JUSTICE KAVANAUGH, and by him referred to the Court, denied. Certiorari denied. Reported below: 964 F. 3d 663.

JULY 15, 2020

Miscellaneous Order

No. 20A4. UNITED STATES ET AL. *v.* PURKEY. Application to vacate stay of execution entered by the United States Court of Appeals for the Seventh Circuit on July 2, 2020, presented to JUSTICE KAVANAUGH, and by him referred to the Court, granted. JUSTICE GINSBURG, JUSTICE BREYER, JUSTICE SOTOMAYOR, and JUSTICE KAGAN would deny the application.

JULY 16, 2020

Miscellaneous Orders

No. 19A1071. RAYSOR ET AL. *v.* DeSANTIS, GOVERNOR OF FLORIDA, ET AL. C. A. 11th Cir. Application to vacate stay, presented to JUSTICE THOMAS, and by him referred to the Court, denied.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG and JUSTICE KAGAN join, dissenting.

This Court's order prevents thousands of otherwise eligible voters from participating in Florida's primary election simply because they are poor. And it allows the Court of Appeals for the Eleventh Circuit to disrupt Florida's election process just days before the July 20 voter-registration deadline for the August primary, even though a preliminary injunction had been in place for nearly a year and a Federal District Court had found the State's pay-to-vote scheme unconstitutional after an 8-day trial. I would grant the application to vacate the Eleventh Circuit's stay.

I

This case implicates the “‘fundamental political right’ to vote.” *Purcell v. Gonzalez*, 549 U. S. 1, 4 (2006) (*per curiam*). In 2018, the citizens of Florida amended their State Constitution to restore this basic right to persons with felony convictions who had completed “‘all terms’” of their sentences. See *Jones v. Governor of Fla.*, 950 F. 3d 795, 800 (CA11 2020) (*Jones I*). Florida’s Legislature and high court have interpreted the amendment to condition voting eligibility on payment of all fines, fees, and restitution imposed as part of a sentence. *Id.*, at 800, 803–804; see also Fla. Stat. §98.0751 (2020 Cum. Supp.); *Advisory Opinion to Governor re: Implementation of Amdt. 4, The Voting Restoration Amdt.*, 288 So. 3d 1070, 1081 (Fla. 2020). Under this scheme, nearly a million otherwise-eligible citizens cannot vote unless they pay money.

Well before the August 18, 2020, Florida primary, several indigent persons with felony convictions challenged the constitutionality of Florida’s voter paywall. Among other things, they claimed that this system violates the Equal Protection Clause, the Due Process Clause, and the Twenty-fourth Amendment.

In October 2019, the United States District Court for the Northern District of Florida issued a preliminary injunction, concluding that the plaintiffs were likely to show that Florida’s pay-to-vote scheme constitutes wealth discrimination in violation of the Equal Protection Clause. See *Jones I*, 950 F. 3d, at 805. The court enjoined state officials from preventing the plaintiffs from registering to vote, or from voting, simply because they are unable to pay their outstanding legal financial obligations (LFOs). See *ibid.*

Months later, the Eleventh Circuit affirmed. It too determined that the plaintiffs were likely to succeed on their equal protection claims. *Id.*, at 817. The Eleventh Circuit further found that Florida’s pay-to-vote scheme would fail rational-basis review as applied to indigent persons, *id.*, at 810–813, and may also fail as applied to all persons with felony convictions if “a substantial enough proportion” of them genuinely “cannot pay,” *id.*, at 814. The Eleventh Circuit declined to rehear the case en banc. For months, then, the Eleventh Circuit’s decision in *Jones I* has set out the legal rights of indigent would-be voters like the plaintiffs here.

With the preliminary injunction still in place, the District Court certified a class of prospective voters on the equal protection and Twenty-fourth Amendment claims and held a bench trial. The 8-day trial included thousands of records and testimony from the plaintiffs, state and county officials, public defenders, and experts. On May 24, 2020, the District Court entered a permanent injunction and issued its factual findings and legal conclusions in a 125-page opinion. See generally *Jones v. DeSantis*, 462 F. Supp. 3d 1196 (ND Fla. 2020) (*Jones II*).

The District Court first found an equal protection violation. Guided by the Eleventh Circuit's controlling analysis in *Jones I*, the District Court concluded that Florida's pay-to-vote system creates an unconstitutional wealth barrier to voting. *Jones II*, 462 F. Supp. 3d, at 1217. The court held that the system lacks any rational basis, finding "as a fact" that "the overwhelming majority of felons who have not paid their LFOs in full, but who are otherwise eligible to vote, are genuinely unable to pay the required amount." *Id.*, at 1219. There was no sound reason, the District Court concluded, for Florida's decision to bar ballot access on the basis of indigence. *Ibid.*

Next, the District Court held that Florida's scheme violates due process. Crediting expert testimony, the court determined that "many felons do not know, and some have no way to find out, the amount of LFOs included in a judgment." *Id.*, at 1220. Not only does Florida provide individuals inconsistent information, but the State's own records are incomplete and unreliable; the District Court even found that Florida lacks records of restitution payments it has received. *Id.*, at 1220–1224. Based on the State's estimates, moreover, the District Court noted that Florida officials would need about six years to determine how much (if anything) currently registered voters (to say nothing of those who seek to register) must pay to vote. *Id.*, at 1228. Compounding the problem, the District Court found, is that Florida law puts the risk of error on the prospective voter, suggesting on its registration forms that a false affirmation of voting eligibility is a felony "regardless of willfulness." *Id.*, at 1229.

Last, the District Court concluded that Florida's payment requirement is a tax abridging the right to vote in violation of the

Twenty-fourth Amendment. *Id.*, at 1233–1234. In the District Court’s view, the required payments are taxes because Florida assesses them “regardless of ” a defendant’s “culpability,” and for the “sole” or “primary purpose of raising revenue to pay for government operations—for things the state must provide, such as a criminal-justice system, or things the state chooses to provide, such as a victim-compensation fund.” *Id.*, at 1233–1234.

Having found several grounds for awarding relief, the District Court prescribed remedies tailored to the State’s existing procedures. In effect, the District Court’s remedies created a rebuttable presumption of inability to pay for any person who the State had already determined was indigent. *Id.*, at 1248. At the State’s suggestion, *id.*, at *ibid.*, the District Court required the Secretary of State to permit voters to seek an advisory opinion from Florida’s Division of Elections regarding the amount owed or their inability to pay, *id.*, at 1250–1252. The court also ordered that a person could register and vote without being prosecuted if the division did not provide a timely advisory opinion within 21 days. *Id.*, at 1250–1251.

On July 1, 2020—over a month after the District Court’s judgment and 19 days before the voter-registration deadline—the Eleventh Circuit stayed the permanent injunction pending appeal. The Court of Appeals provided no reasons for its order.

II

This Court errs in refusing to vacate that stay. The Court may vacate an appellate court stay where (1) the case “could and very likely would be reviewed here upon final disposition in the court of appeals,” (2) “the rights of the parties . . . may be seriously and irreparably injured by the stay,” and (3) “the court of appeals is demonstrably wrong in its application of accepted standards in deciding to issue the stay.” *Coleman v. Paccar Inc.*, 424 U. S. 1301, 1304 (1976) (Rehnquist, J., in chambers). Although the Court exercises this power sparingly, it has done so in voting-rights cases like this one. See, e. g., *Frank v. Walker*, 574 U. S. 929 (2014) (vacating Court of Appeals stay of permanent injunction).

This case easily meets the first two *Coleman* prongs. By the District Court’s count, “nearly a million” persons are barred from voting because of Florida’s alleged wealth discrimination, inscru-

table processes, and tax. See *Jones II*, 462 F. Supp. 3d, at 1203. A case implicating the franchise of almost a million people is exceptionally important and likely to warrant review. See this Court's Rule 10. And there is no question that these people would suffer irreparable harm were they denied the vote or "incentiv[ized] to remain away from the polls" because of the Eleventh Circuit's conflicting orders or Florida's threat of prosecution. *Purcell*, 549 U.S., at 5. By contrast, the State has not shown comparable injury, especially because the District Court's remedies employ existing state procedures that the State itself proposed. *Jones II*, 462 F. Supp. 3d, at 1248–1249.

As for the third prong, the Eleventh Circuit was "demonstrably wrong in its application of accepted standards in deciding to issue the stay." *Coleman*, 424 U.S., at 1304. The Court of Appeals not only failed to defer to the District Court's factual findings, but it also appears to contradict its prior view of the plaintiffs' equal protection claims. For starters, the District Court made extensive "factual findings to which the Court of Appeals owed deference," *Purcell*, 549 U.S., at 5, including that Florida's pay-to-vote scheme overwhelmingly affects the indigent and is intended to fund state services regardless of any person's criminal culpability, *Jones II*, 462 F. Supp. 3d, at 1219, 1233. The Eleventh Circuit's "bare order" staying the District Court's decision does not "provide any factual findings or indeed any reasoning of its own," and "[t]here has been no explanation given by the Court of Appeals showing the ruling and findings of the District Court to be incorrect." *Purcell*, 549 U.S., at 5. The law required the Eleventh Circuit to "give deference to the discretion of the District Court," but there is "no indication that it did so." *Ibid.* That is the precise error this Court corrected in *Purcell*.

Equally important, the Eleventh Circuit has created the very "confusion" and voter chill that *Purcell* counsels courts to avoid. *Ibid.* Precisely because the District Court's decision in *Jones II* tracked the Eleventh Circuit's decision in *Jones I*, the stay upends the legal status quo nearly a year after the preliminary injunction took effect. Moreover, the Eleventh Circuit did not vacate *Jones I*—a point that further obfuscates the state of the law for would-be voters just 19 days before the voter-registration deadline. No doubt tens of thousands of Floridians with felony convictions have

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already registered to vote: That is precisely what *Jones I* said they could do. The State even admitted at trial that 85,000 registrations needed screening based on prior felony convictions (including eligibility involving LFOs). *Jones II*, 462 F. Supp. 3d, at 1228. Those who registered in reliance on the preliminary and permanent injunctions will remain on the voter rolls despite the Eleventh Circuit's stay. See *ibid.* (finding that it would take the State about six years to review these records). Yet because of the Eleventh Circuit's decision, these voters will have no notice of their potential ineligibility or the resulting criminal prosecution they may face for failing to follow the abrupt change in law. Making matters worse, the Eleventh Circuit will not hear argument on this case until August 18, the day of the primary election.

In short, the plaintiffs have raised serious claims, some of which the Eleventh Circuit already found likely to succeed. Because the parties' rights and the legal framework had been well established, it was error for the Eleventh Circuit to reverse course in an unexplained stay order right before an election.

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This Court's inaction continues a trend of condoning disenfranchisement. Ironically, this Court has wielded *Purcell* as a reason to forbid courts to make voting safer during a pandemic, overriding two federal courts because any safety-related changes supposedly came too close to election day. See *Republican National Committee v. Democratic National Committee*, 589 U.S. 423 (2020) (*per curiam*). Now, faced with an appellate court stay that disrupts a legal status quo and risks immense disenfranchisement—a situation that *Purcell* sought to avoid—the Court balks.

I respectfully dissent.

No. 20A9. BARR, ATTORNEY GENERAL, ET AL. *v.* PURKEY. D. C. D. C. Application for stay or vacatur, presented to THE CHIEF JUSTICE, and by him referred to the Court, granted. The District Court's July 15, 2020, order granting preliminary injunction is vacated.

JUSTICE BREYER, with whom JUSTICE GINSBURG joins, dissenting.

Two days ago, the Federal Government conducted its first execution in nearly two decades. Today, it will conduct its second.

Both cases have come before us with the defendants pointing to what I believe are serious legal defects of a kind that have long plagued the administration of the death penalty in the United States. See *Glossip v. Gross*, 576 U. S. 863, 908–948 (2015) (BREYER, J., dissenting).

The first case, that of Daniel Lewis Lee, revealed the inherent arbitrariness of the death penalty. Lee was sentenced to death and his codefendant to life even though the two men committed the same crime. See *Barr v. Lee*, 591 U. S. 979, 982 (2020) (BREYER, J., dissenting); see also *Glossip*, 576 U. S., at 917 (“40 years of further experience [since *Gregg v. Georgia*, 429 U. S. 1301 (1976)] make it increasingly clear that the death penalty is imposed arbitrarily”). Lee’s case also implicated the problem of excessive delay and the risk of severe and unnecessary suffering brought about by the Government’s chosen method of execution. *Lee*, 591 U. S., at 981 (BREYER, J., dissenting). Today’s case, that of Wesley Purkey, raises similar problems.

Consider the problem of delay. See *Lackey v. Texas*, 514 U. S. 1045 (1995) (Stevens, J., memorandum respecting denial of certiorari). Daniel Lee’s execution took place more than 20 years after his trial. See *Lee*, 591 U. S., at 982 (BREYER, J., dissenting). Wesley Purkey was sentenced to death over 16 years ago for a crime committed six years before that. See *United States v. Purkey*, No. 4:01-cr-00308, Doc. No. 505 (WD Mo., Jan. 23, 2004); *United States v. Purkey*, 428 F. 3d 738, 745 (CA8 2005). Purkey is now 68 years old, frail, and suffering from Alzheimer’s disease and other psychiatric conditions. See Report of Dr. Bhushan Agharkar, in No. 1:19-cv-03570, Doc. 1-1, p. 2 (D DC, Nov. 26, 2019); Report of Dr. Jonathan DeRight, in No. 1:19-cv-03570, Doc. 1-1, at 23 (D DC, filed Nov. 26, 2019). He has undergone many years of what this Court has called the “immense mental anxiety” of confinement on death row awaiting an uncertain date of execution. *In re Medley*, 134 U. S. 160, 172 (1890) (referring to period of *four weeks*); see also *Glossip*, 576 U. S., at 926–929 (BREYER, J., dissenting).

The delay itself undermines the penological rationales for the death penalty: deterrence and retribution. *Id.*, at 929–933; see also *Lee*, 591 U. S., at 982 (BREYER, J., dissenting). I have previously explained that prolonged delays likely reduce the death penalty’s deterrent effect. See *Glossip*, 576 U. S., at 930–932 (dissenting opinion). And after so many years have passed, executing the

offender may not serve the interest in retribution either. In Lee's case, for example, the victims' relatives explained that Lee's execution would only "bring [the] family more pain." Demillo, Victims' Relatives Most Vocal Opponents of Man's Execution, Washington Post, July 13, 2020; see also Robertson, She Doesn't Want Her Daughter's Killer To Be Put To Death. Should the Government Listen? N. Y. Times, Oct. 29, 2019. And Purkey alleges that, in the years since his sentencing, his mental condition has deteriorated to the point where he no longer understands why he is being executed. See Complaint in No. 1:19-cv-03570, Doc. 1, ¶¶ 20–108 (D DC, Nov. 26, 2019). We have "question[ed] the retributive value of executing a person" under such circumstances. *Ford v. Wainwright*, 477 U. S. 399, 409 (1986).

Purkey's case also raises serious problems of proper procedure. See *Purkey v. United States*, 964 F. 3d 603 (CA7 2020). Simplifying the problem, imagine that a death-sentenced defendant's trial or sentencing suffered from his lawyer's constitutionally inadequate performance. Suppose too that his lawyer in his initial habeas proceeding was himself inadequate because he failed to raise the trial lawyer's initial constitutional inadequacy. Can the defendant bring the matter up in a later habeas proceeding, say, a proceeding where he now has a better lawyer? He can sometimes do so where a state conviction is at issue. See *Martinez v. Ryan*, 566 U. S. 1 (2012); *Trevino v. Thaler*, 569 U. S. 413 (2013). But can he do so where, as here, a federal conviction is at issue? In my view, the question, as presented here, is difficult. On the one hand, we ought not to have a procedural system where challenges to a conviction can go on endlessly. On the other hand, is it consistent with criminal justice principles to allow the execution of a defendant whose conviction rests upon the constitutional inadequacy of a lawyer, when no court has ever adjudicated that inadequacy?

The question reflects the heightened need for reliability in the death penalty context. See *Glossip*, 576 U. S., at 909–910 (BREYER, J., dissenting). The risk of error that we may accept as necessary to the functioning of the system more generally is less tolerable when the punishment is, by definition, irreparable. Yet the requisite opportunities to challenge and then correct errors necessarily entail delay that, in turn, undercuts the penological rationale for the death penalty. In this context, it is espe-

cially difficult to reconcile the competing values of finality and accuracy.

I have written about these matters before. See, e.g., *Price v. Dunn*, 587 U.S. 1036 (2019) (opinion dissenting from denial of application for stay); *Jordan v. Mississippi*, 585 U.S. 1039 (2018) (opinion dissenting from denial of certiorari); *McGehee v. Hutchinson*, 581 U.S. 933, 934 (2017) (opinion dissenting from denial of application for stay of execution); *Reed v. Louisiana*, 580 U.S. 1166 (2017) (opinion dissenting from denial of certiorari); *Sireci v. Florida*, 580 U.S. 1036 (2016) (same); *Tucker v. Louisiana*, 578 U.S. 1018 (2016) (same); *Boyer v. Davis*, 578 U.S. 965 (2016) (same). I repeat them here in summary form because the Federal Government has resumed executions after a 17-year hiatus. And the very first cases reveal the same basic flaws that have long been present in many state cases. That these problems have emerged so quickly suggests that they are the product not of any particular jurisdiction or the work of any particular court, prosecutor, or defense counsel, but of the punishment itself. A modern system of criminal justice must be reasonably accurate, fair, humane, and timely. Our recent experience with the Federal Government's resumption of executions adds to the mounting body of evidence that the death penalty cannot be reconciled with those values. I remain convinced of the importance of reconsidering the constitutionality of the death penalty itself.

JUSTICE SOTOMAYOR, with whom JUSTICE GINSBURG, JUSTICE BREYER, and JUSTICE KAGAN join, dissenting.

In a matter of hours, the Government plans to put to death Wesley Purkey, a 68-year-old federal inmate who has Alzheimer's disease and, according to a recent in-person evaluation by a forensic psychiatrist, "lack[s] a rational understanding of the basis for his execution." Complaint in No. 1:19-cv-03570 (D DC), Doc. 1-1, p. 13 (Purkey Psychiatric Report). Due to these developments and rapid deteriorations in Purkey's mental state, his counsel filed an action in the United States District Court for the District of Columbia. The complaint alleges that under *Ford v. Wainwright*, 477 U.S. 399 (1986), Purkey is mentally incompetent to be executed and, at minimum, is entitled to an evidentiary hearing to evaluate his mental competence before the Government proceeds with his execution. The District Court below preliminarily enjoined Purkey's execution, finding that the evidence